could form a stable government. There were well-established conventions as to the pecking order the governor should follow in inviting parties or alliances to stake a claim to form the government when a single party did not secure an absolute majority. For example, the largest pre-poll alliance would take priority, followed by the single largest party, thereafter followed by the largest post-poll alliance. The governor's role, according to the chief justice, was not to ensure good governance or promote transparency in politics. Those were tasks that were better performed by the opposition and the electorate than the governor.

The court also made some damning remarks about the role of the governor through this episode. According to the chief justice, the governor misled the council of ministers, resulting in them advising the President to issue a proclamation dissolving the assembly. The presidential proclamation could not be justified on the 'suspicion, whims and fancies of the Governor'.[13] The court did not stop with the conduct of the governor, but went as far as imputing ulterior motives: 'The action of the governor was a mere pretence, the real object being to keep away a political party from staking a claim to form the government.'[14]

The Supreme Court's decision was not unanimous, with two of the five judges on the panel dissenting from the majority view. According to Justice Pasayat, the governor was not obliged to remain a silent spectator in the face of attempts to form a government through dishonest means. He would have granted a wide margin of discretion to the governor: 'However suspicious [the] conduct of the governor may be, and even if it is accepted that he had acted in hot haste it cannot be a ground to term his action as extraneous.'[15] For Justice Balakrishnan (who would later become chief justice), a government formed by foul means could hardly be described as a democratically elected government. In his view, the majority's decision was antithetical to, rather than in furtherance of, democratic values.

The Supreme Court's decision provoked serious deliberations within the Congress party and the UPA government. Any ideas of filing a petition in the court seeking a review of its decision were shot down on the basis that there was a risk the court would further reprimand the governor, or worse